

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

NASTACCIA DIAZ**INDEX NO.: 20246-2013E**

Plaintiff,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MELISSA
KARSON, POLICE OFFICER CHAD PHILLIPS,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE****AMENDED VERIFIED
COMPLAINT**

Defendant(s).

Plaintiff, by her attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants,
respectfully shows to this Court and alleges the following upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NASTACCIA DIAZ**

1. That at all times the Plaintiff **NASTACCIA DIAZ** was and is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, hereinafter referred to as “CITY”, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, **NEW YORK CITY POLICE DEPARTMENT**, hereinafter referred to as “NYPD”, was and is an agency of the defendant, CITY.
4. That on and prior to 10/19/11 and at all times hereinafter mentioned the defendant, **POLICE OFFICER MELISSA KARSON** (Shield No. 29775), hereinafter referred to as “KARSON” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. That on and prior to 10/19/11 and at all times hereinafter mentioned the defendant, POLICE OFFICER CHAD PHILLIPS (Shield No. 26095), hereinafter referred to as "PHILLIPS" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 10/19/11 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as "DOE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. That on and prior to 10/19/11 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as "ROE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **NASTACCIA DIAZ** caused the notice of claim, in writing, sworn to by and on behalf of the claimant, the Plaintiff **NASTACCIA DIAZ** herein, containing the statement of the name and place of residence of the claimant by the street and number and her attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department.

9. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this

action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

10. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

11. That on or about 10/19/11, at approximately 12:00 p.m., the Plaintiff **NASTACCIA DIAZ** while lawfully in the vicinity of 3259 Perry Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, KARSON, PHILLIPS, DOE and ROE of having committed the crime of Resisting Arrest and other related charges.

12. That on or about 10/19/11, at approximately 12:00 p.m., the Plaintiff **NASTACCIA DIAZ** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, KARSON, PHILLIPS, DOE and ROE, their agents, servants and/or employees, and in particular, by KARSON, PHILLIPS, DOE and ROE.

13. That on or about 10/19/11, and upon arresting the Plaintiff **NASTACCIA DIAZ** and depriving her of her liberty, CITY, NYPD, KARSON, PHILLIPS, DOE and ROE took the Plaintiff **NASTACCIA DIAZ** to a police station in the County of Bronx and entered her on the records as under arrest.

14. That on or about 10/19/11, the CITY, NYPD, KARSON, PHILLIPS, DOE and ROE further caused Plaintiff **NASTACCIA DIAZ** to have her fingerprints and photographs to be taken without her consent and in accordance with police procedures for the arrest of criminals and held her

on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

15. That on or about 10/19/11 Plaintiff **NASTACCIA DIAZ** was aware of her arrest and confinement, she did not consent to her arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

16. That at all times hereinafter mentioned the actions of CITY, NYPD, KARSON, PHILLIPS, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

17. That by reason of the foregoing, Plaintiff **NASTACCIA DIAZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NASTACCIA DIAZ

18. Plaintiff **NASTACCIA DIAZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 17 with the same force and effect as if fully set forth at length herein.

19. That on or about 10/19/11, a criminal complaint was issued by the CITY, NYPD, KARSON, PHILLIPS, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

20. That on or about 10/19/11 a criminal action against Plaintiff **NASTACCIA DIAZ** was commenced by CITY, NYPD, KARSON, PHILLIPS, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

21. That solely as a result of the aforesaid, the Plaintiff **NASTACCIA DIAZ'S** life was interfered with.

22. That the criminal action against Plaintiff **NASTACCIA DIAZ** was continued for an extended period of time by defendants with malice and bad faith.

23. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **NASTACCIA DIAZ**, she was deprived of her liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

24. That the criminal action against Plaintiff **NASTACCIA DIAZ** was terminated favorably by dismissal on 4/1/13.

25. - That the actions of CITY, NYPD, KARSON, PHILLIPS, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

26. That by reason of the foregoing, Plaintiff **NASTACCIA DIAZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NASTACCIA DIAZ

27. Plaintiff **NASTACCIA DIAZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 26 with the same force and effect as if fully set forth at length herein.

28. That on or about 10/19/11, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **NASTACCIA DIAZ** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated and handcuffed by the CITY, NYPD, KARSON, PHILLIPS, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

29. That on or about 10/19/11 CITY, NYPD, KARSON, PHILLIPS, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, KARSON, PHILLIPS, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **NASTACCIA DIAZ** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **NASTACCIA DIAZ** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **NASTACCIA DIAZ** and caused such battery in and about her head, neck, back, body and limbs.

30. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **NASTACCIA DIAZ** suffered great and permanent bodily injury in and about her head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

31. That as a result of the aforesaid assault and battery the Plaintiff **NASTACCIA DIAZ** was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure herself of her said injuries and she was and will be prevented from attending her usual occupation and duties.

32. That at all times hereinafter mentioned the actions of CITY, NYPD, KARSON, PHILLIPS, DOE and ROE as described above were carried out in a reckless, deliberate, willful,

wanton, malicious and grossly negligent manner.

33. That by reason of the foregoing, Plaintiff **NASTACCIA DIAZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NASTACCIA DIAZ**

34. Plaintiff **NASTACCIA DIAZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 33 with the same force and effect as if fully set forth at length herein.

35. That at all times hereinafter mentioned the aforesaid false arrest, assault, battery, false imprisonment and malicious prosecution was caused solely as a result of the negligence of CITY, NYPD, KARSON, PHILLIPS, DOE and ROE, their agents, servants and/or employees.

36. That at all times hereinafter mentioned the actions of CITY, NYPD, KARSON, PHILLIPS, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

37. That by reason of the foregoing, Plaintiff **NASTACCIA DIAZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NASTACCIA DIAZ**

38. Plaintiff **NASTACCIA DIAZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-37 with the same force and effect as if fully set forth at length herein.

39. That the CITY, NYPD, their agents, servants and employees failed to adequately and properly train, supervise, discipline or in any other way control the behavior of their personnel and in particular defendants KARSON, PHILLIPS, DOE and ROE, and in their hiring practices in the

exercise of their functions in that they had a reckless lack of cautious regard for the rights of the public, including Plaintiff **NASTACCIA DIAZ** and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

40. Defendants CITY and NYPD have grossly failed to train and adequately supervise its police officers and employees in the fundamental law of arrest, search and seizure especially when its police officers and employees are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers and employees should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

41. Defendant CITY was negligent by failing to implement a policy and instruct police officers who, absent the consent of Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest warrant or search warrant, said police officers of the CITY and NYPD are not to arrest individuals such as Plaintiff herein where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where an individual is not resisting arrest.

42. Defendant CITY is negligent due to its failure to implement a policy or actively enforce the law if any of the following are lacking: i) probable cause must be present before an individual such as the Plaintiff herein can be arrested; ii) excessive force cannot be used against an individual who does not physically resist arrest; iii) an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

43. The foregoing acts, omissions, and systemic failures are customs and policies of the CITY and NYPD which caused the police officers herein to falsely arrest, falsely imprison, seize, illegally search, commit an assault and battery on Plaintiff, maliciously prosecute and deny her

prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

44. Defendant CITY was also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

45. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

46. That by reason of the foregoing, Plaintiff **NASTACCIA DIAZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NASTACCIA DIAZ**

47. Plaintiff **NASTACCIA DIAZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-46 with the same force and effect as if fully set forth at length herein.

48. In arresting Plaintiff **NASTACCIA DIAZ**, police officers including but not limited to KARSON, PHILLIPS, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

49. In arresting Plaintiff **NASTACCIA DIAZ**, police officers including but not limited to KARSON, PHILLIPS, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **NASTACCIA DIAZ** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

50. As a result of the abuse of process by defendants herein, Plaintiff **NASTACCIA DIAZ** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

51. That by reason of the foregoing, Plaintiff **NASTACCIA DIAZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NASTACCIA DIAZ

52. Plaintiff **NASTACCIA DIAZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 51 with the same force and effect as if fully set forth at length herein.

53. At all times mentioned herein, defendants CITY, NYPD and NYPD police officers KARSON, PHILLIPS, DOE and ROE were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

54. Plaintiff **NASTACCIA DIAZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

55. That on or about 10/19/11, defendants CITY, NYPD, KARSON, PHILLIPS, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **NASTACCIA DIAZ**, did search, seize, assault and commit a battery and grab the

Plaintiff **NASTACCIA DIAZ** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **NASTACCIA DIAZ** during the arrest process in an unlawful and excessive manner. Plaintiff **NASTACCIA DIAZ** was falsely arrested, unlawfully imprisoned and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

56. The above actions of defendants CITY, NYPD, KARSON, PHILLIPS, DOE and ROE resulted in Plaintiff **NASTACCIA DIAZ** being deprived of the following rights under the United States Constitution: a) Freedom from assault to her person; b) Freedom from battery to her person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; and f) Freedom from the use of excessive force during the arrest process.

57. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

58. Defendants CITY, NYPD, KARSON, PHILLIPS, DOE and ROE subjected Plaintiff **NASTACCIA DIAZ** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **NASTACCIA DIAZ'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

59. The direct and proximate result of the defendants CITY, NYPD, KARSON, PHILLIPS, DOE and ROE acts are that Plaintiff **NASTACCIA DIAZ** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional

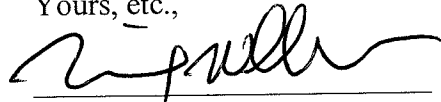
distress and severe and significant damage to standing and reputation in the community.

60. That by reason of the foregoing, Plaintiff **NASTACCIA DIAZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **NASTACCIA DIAZ** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York
May 28, 2013

Yours, etc.,



NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
59 Maiden Lane, 17th Floor
New York, NY 10038
(212) 412-4705
File No.: NW-410

ATTORNEY VERIFICATION

NEIL WOLLERSTEIN, an attorney duly admitted to practice before the courts of the State of New York affirms the following to be true pursuant to CPLR 2106 and under the penalties of perjury:

1. The undersigned, an attorney admitted to practice in the Courts of the State of New York states that he is retained on behalf of plaintiff **NASTACCIA DIAZ**.
2. That affirmant has read the foregoing **AMENDED VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged on information and belief; and that as to those matters affirmant believes them to be true.
3. Your affirmant further says that the reason this verification is made by affirmant and not the plaintiff is that the plaintiff is not within the County of New York where affirmant maintains his office.

Dated: New York, New York
May 27, 2013


NEIL WOLLERSTEIN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NASTACCIA DIAZ

Plaintiff,

— against —

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER MELISSA KARSON, POLICE OFFICER CHAD PHILLIPS, POLICE OFFICER
JOHN DOE and POLICE OFFICER JOHN ROE**

Defendant(s).

AMENDED VERIFIED COMPLAINT

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